COMMONWEALTH OF KENTUCKY
SUPREME COURT OF KENTUCKY

CASE NO. 2024-SC-0228 (consolidated with 2024-SC-0254 and 2024-SC-0256)
On Appeal from Court of Appeals
No. 2022-CA-0837
Jefferson Circuit Court No. 22-CI-002228

ANDY BESHEAR, in his official capacity as Governor of the Commonwealth of Kentucky, et al.

Appellants

V.

RUSSELL COLEMAN, in his official capacity as Attorney General of the Commonwealth of Kentucky, et al.

Appellees

PETITION FOR REHEARING, MODIFICATION, AND EXTENSION

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The record on appeal was not withdrawn in preparing this petition.

/s/ Matthew F. Kuhn

INTRODUCTION

The Court's holding that the Governor must appoint a sufficient number of the members of the Fair Board and the Executive Branch Ethics Commission (EBEC) has no basis in the text of Kentucky's Constitution, caselaw interpreting it, or the Commonwealth's history. Kentucky has a divided executive form of government, not as this Court said one with "unified executive accountability" to the Governor. Op.23. Our Constitution is skeptical of consolidating too much power in any one person. That's why Section 91 of the Constitution creates an independently elected Attorney General, Agriculture Commissioner, Treasurer, Auditor, and Secretary of State. These Section 91 constitutional officers are just as accountable to Kentuckians as is the Governor. And under our Constitution, they are just as empowered to appoint the members of the Fair Board and EBEC. Because the Court's holding to the contrary is at war with our divided executive, rehearing is appropriate.

Even if the Court will not reconsider its constitutional holding, it should at least reconsider its severability holding related to the procurement provision in the Fair Board bill. That holding, which cannot be justified under Kentucky's severability statute, means that the Fair Board's longstanding procurement processes will be thrown out—with the State Fair only weeks away.

Finally, even if the Court insists on leaving its opinion as written, it should extend the decision to make clear that the Governor's rush to remake the Fair Board and its leadership without waiting for finality of the opinion was unlawful.

Although the Court divided 4–3 on the constitutional issue, it should be unanimous in holding that its appellate rules must be respected.

STATEMENT OF THE CASE

The Court's opinion addressed the constitutionality of two bills: 2021 House Bill 518, which altered the makeup and functioning of the Fair Board, and 2022 House Bill 334, which altered the makeup of EBEC.

The EBEC bill has yet to take effect because of the Jefferson Circuit Court's permanent injunction. EBEC R.536. Almost all of the Fair Board bill, however, has been in effect for over five years—since the law took effect in March 2021. Although the Jefferson Circuit Court ruled the appointment provisions of HB 518 unconstitutional, the court stayed its permanent injunction "pending the exhaustion of any appeals." Fair Board R.1056. On the Governor's motion, a motion panel of the Court of Appeals left

that stay in place, except as to the legislative-appointment provision. COA Order 18–19 (June 9, 2022). The Court of Appeals merits panel declined to revisit that stay ruling. COA Op. 40 (Mar. 8, 2024). So every word of HB 518 has been in effect for over five years, save for the legislative-appointment provision.

Shortly after the Court issued its opinion, Governor Beshear upset this status quo, despite the opinion not being final. See RAP 40(G)(1). On June 29, the Governor purported to appoint eight new members to the Fair Board. Exec. Order 2026-402 (June 29, 2026) (attached as Exhibit 2). His executive order declared that the Court's opinion "voids all terms of current appointees as all were appointed under the unconstitutional law." *Id.* The next day, the Governor's administration purported to cancel the contract of the longstanding President and CEO of Kentucky Venues because the Fair Board that hired him was "unconstitutionally appointed, as held by the Kentucky Supreme Court decision." June 30, 2026 Letter (attached as Exhibit 3). Then, on July 1, the newly constituted Fair Board purported to install an Interim President and CEO. McKenna Horsley, After Supreme Court Decision, Beshear's Kentucky State Fair Board Removes CEO, Kentucky Lantern (July 2, 2026).

ARGUMENT

The Petitioners, who are every Section 91 constitutional officer and the Senate President and House Speaker, make three arguments.[1] First, the Court should reconsider its holding that the Governor must appoint a sufficient number of the members to the Fair Board and EBEC. Second, the Court should reconsider its severability holding as it relates to the procurement provision in HB 518. And third, the Court should extend its opinion to emphasize that its opinion is not final, and thus not effective, until this petition is resolved.

I. The Court should reconsider its constitutional holding.

Rehearing is appropriate when the Court has "overlooked . . . a controlling statute or decision, or has misconceived the issues presented on the appeal or the law applicable thereto." RAP 43(B)(1)(a). Because rehearing isn't a redo, the Petitioners endeavor not to reargue points that the Court addressed in its opinion. Instead, they focus on what the

[1] Under RAP 43(B)(1)(b), the Court also should modify its opinion to correct two typos. On page six, the Court said that the Franklin Circuit Court ruled on the Fair Board and EBEC cases. It was the Jefferson Circuit Court.

Court failed to discuss. And the Court overlooked a lot: the effect of Sections 76 and 93, binding precedent, and Kentucky's history.

Start with the constitutional provisions. The Court combined Sections 69 and 81 to create a novel rule that the Governor must appoint a sufficient number of the Fair Board's and EBEC's members to ensure "meaningful supervision."[2] Op.7–19. Although the language of Sections 69 and 81 has been in all four of Kentucky's constitutions, this is the first time in two centuries that Kentucky's high court has wielded these provisions to invalidate a law for not giving the Governor enough power. The obvious problem with so holding is that Sections 69 and 81 are general provisions, while the Constitution deals specifically with gubernatorial appointments and appointments to boards and commissions in Sections 76 and 93, respectively, neither of which contains a requirement that the Governor must have a sufficient number of appointees. If our framers intended to create such a requirement, they would have said so expressly in Section 76 or 93. They would not have hidden such a far-reaching power in the nonspecific language of Sections 69 and 81. That it took Kentucky's high court over two centuries to find this power for the first time proves as much.

The Court's opinion overlooked the foundational rule that specific constitutional provisions like Sections 76 and 93 control over general ones like Sections 69 and 81. See *Commonwealth ex rel. Att'y Gen. v. Howard*, 180 S.W.2d 415, 418 (Ky. 1944). It also overlooked the fundamental rule that implicit constitutional rights are not favored under our Constitution.[3] See *Westerfield v. Ward*, 599 S.W.3d 738, 748 (Ky. 2019). In short, the Court's opinion requires concluding that the framers wrote our Constitution in an upside-down way. According to the Court, the framers granted the Governor sweeping appointment authority without mentioning it in the Constitution's appointment provisions. No one writes a Constitution that way, especially not our "learned" framers

[2]The Court also relied on Sections 27 and 28. Op.12. But those provisions don't prohibit the General Assembly from merely directing how the executive branch operates. After all, "the executive branch exists principally to do [the legislature's] bidding." *Brown v. Barkley*, 628 S.W.2d 616, 623 (Ky. 1982). Sections 27 and 28 instead prohibit the legislature from exercising executive power. *Prater v. Commonwealth*, 82 S.W.3d 898, 907 (Ky. 2002) ("[A] constitutional violation of the separation of powers occurs when, and only when, one branch of government exercises power properly belonging to another branch."). Saying in statute who gets to appoint a member of a board or commission is a legislative, not an executive, power. *Sibert v. Garrett*, 246 S.W. 455, 460 (Ky. 1922).

[3]The Court said its holding "does not rest on implied powers." Op.16. Declaring as much does not make it so. The Court implied appointment authority from Sections 69 and 81, neither of which mentions appointments, when the Constitution explicitly discusses appointments in Sections 76 and 93. That is an implied-power holding if there ever was one.

"who understood the use and the meaning of words." *Brown v. Moss*, 105 S.W. 139, 141 (Ky. 1907).

To be fair, the Court discussed Sections 76 and 93. Op.7–8, 13–14, 18. It essentially said that neither provision gives the legislature the power to dilute the Governor's number of appointees. The Petitioners agree as to Section 76. Their point is that Section 76 discusses gubernatorial appointments without mandating that the Governor get a certain number of appointees to boards and commissions—a tell that the framers didn't intend for the Governor to have that power. As to Section 93, the Petitioners could not disagree more with the Court's conclusion that it doesn't let the General Assembly decide who makes appointments to boards and commissions. In fact, over a century ago, this Court's predecessor held that is exactly what Section 93 does. Here's the quote: Section 93 allows the legislature to "direct[] upon whom or with whom the power to appoint or elect was lodged." *Sibert v. Garrett*, 246 S.W. 455, 460 (Ky. 1922) (emphasis added). The Petitioners raised this holding from *Sibert* in briefing, but the Court didn't mention it despite relying on *Sibert* for another proposition. The Petitioners of course agree with the Court that "fidelity to stare decisis is not optional." Op.22 (capitalization removed). But fidelity to stare decisis means confronting every part of *Sibert*.

The Court also overlooked the importance of Section 91's requirement that the Attorney General, Agriculture Commissioner, Treasurer, Auditor, and Secretary of State stand for statewide election every four years—just like the Governor. In effect, the Court treated the Governor like the only constitutional official who is accountable to the people for his actions. Every Kentuckian who votes knows that is wrong. The Court's implication that the Section 91 officials cannot be trusted to make a meaningful number of appointments to the Fair Board and EBEC is, respectfully but frankly, disrespectful to the Kentuckians who elected them. This Court previously recognized the fundamental role that Section 91 plays in safeguarding our divided executive. *Brown v. Barkley*, 628 S.W.2d 616, 623 (Ky. 1982) ("That the Const. Sec. 91 officers are to be elected by the people suggests that, whatever their duties, they are not answerable to the supervision of anyone else."). Yet the Court's opinion didn't mention Section 91 or caselaw applying it.

The Court's opinion overlooked other binding caselaw. It didn't once mention *Cameron v. Beshear*, which unanimously held that the legislature can require the Governor and the Attorney General to share equally in the exercise of an extraordinarily important power. 628 S.W.3d 61, 76 (Ky. 2021). *Cameron v. Beshear* also reaffirmed that

our Constitution "created these independent, statewide-elected officers [under Section 91] to 'provide convenient receptacles for the diffusion of executive power.'" *Id.* (citation omitted). Here again, fidelity to stare decisis requires applying *Cameron v. Beshear*.

Cameron v. Beshear is not the only binding precedent that went unmentioned. The Court also overlooked *Rouse v. Johnson*, which recognized that Section 93 allows the General Assembly to remove all the Governor's unilateral appointments to a board or commission. 28 S.W.2d 745, 746, 751 (Ky. 1930). That is exactly how this Court previously read *Rouse*. *LRC v. Brown*, 664 S.W.2d 907, 923 (Ky. 1984) (explaining that in *Rouse* "remov[ing]" appointments "from the Governor" "was held valid, as being consistent with Ky. Const. Sec. 93 and with Ky. Const. Secs. 27–28"). The Court's only counter with respect to Section 93 is that it is "procedural," not "structur[al]." Op.13–14. The Court cited no caselaw drawing this distinction. Indeed, *Rouse* and the *Sibert* quote mentioned above refute such a rule. If deciding the "manner" of an appointment under Section 93 does not include deciding who makes the appointment, the word "manner" means nothing.

The Court's opinion also overlooked Kentucky's history of skepticism toward expansive gubernatorial appointment power. The Petitioners don't repeat that history here, given that the dissent persuasively summarized it. Op.34–38 (Conley, J., dissenting in part); see also Fair Board Appellants' Br. 17–24. The problem is that the Court's opinion proceeded like this history doesn't exist. History matters. See *Keck v. Manning*, 231 S.W.2d 604, 607 (Ky. 1950). It matters that our framers rejected a power grab by the 1891 Governor that is not all that different from Governor Beshear's current assertion of power. Op.35–37 (Conley, J., dissenting in part). It matters that the framers intentionally removed a provision of the Constitution that would have essentially given the Governor the power he now claims and that they did so to protect the legislature's prerogative to decide who makes appointments. Op.38 (Conley, J., dissenting in part). And it matters that our framers adopted the predecessor provision to Section 93 to rein in the Governor's appointment power. Op.34–35 (Conley, J., dissenting in part). Kentucky's highest court cannot be agnostic to Kentucky history. If the Court reaches a holding that our framers surely would have rejected, the Court is not faithfully interpreting the Constitution.

II. The Court should reconsider its severability holding.

Unlike both lower courts, the Court refused to sever the provisions of HB 518 that it found unconstitutional, despite admitting that part of HB 518 is constitutional. Op.22, 24–25. That was a profound error that will cause immediate harm to the Fair Board.

Aside from the appointment provisions of HB 518, the law did several less controversial things. Relevant here, it changed how the Fair Board conducts procurement. Before HB 518, the Fair Board was subject to the Model Procurement Code. After HB 518, the Fair Board can adopt its own procurement regulation if it so chooses, KRS 247.147(1)(b), which allows the Fair Board to approach procurement in ways that reflect the Fair Board's unique contracting needs. In allowing this procurement flexibility, HB 518 recognized the "unique operational activities conducted for state government by the State Fair Board." KRS 247.147(3). For example, the Fair Board regularly contracts with major performers. It also works with national and international organizations to provide event space. And the Fair Board puts on several flagship events: the State Fair and the National Farm Machinery Show, for example. All these unique functions require nimbleness in contracting that is hard to achieve under the one-size-fits-all Model Procurement Code.

The Fair Board has exercised the procurement flexibility granted by HB 518 for over five years. How the Fair Board conducts procurement has no bearing on who appoints its members and whether members of the legislature can be nonvoting members. That matters because, as the Court recognized, Kentucky law "favors severability." Op.24. Only in narrow circumstances can Kentucky courts refuse to sever an otherwise constitutional law. Severance is unnecessary where "the remaining parts, standing alone, are incomplete and incapable of being executed in accordance with the intent of the General Assembly." KRS 446.090. That exception doesn't apply here, given that the Fair Board, however composed, can utilize HB 518's procurement provision. The Court also can refuse severance where "the remaining parts are so essentially and inseparably connected with and dependent upon the unconstitutional part that it is apparent that the General Assembly would not have enacted the remaining parts without the unconstitutional part." *Id.* That doesn't describe this case, given that HB 518's procurement provision accomplished something qualitatively different than the appointment provisions.

The Court should not be lulled into thinking that HB 518's procurement provision is unimportant in the grand scheme. The Fair Board is currently finalizing preparations

for the State Fair. If the Court's opinion becomes final in the near term, the Fair Board will face the possibility that its procurement processes will need to change shortly before, or perhaps during, the State Fair. If the Court is not inclined to revisit its severability ruling, it should at least delay the effective date of its opinion until the General Assembly can decide whether to readopt HB 518's procurement provision. See *Fischer v. State Bd. of Elecs.*, 879 S.W.2d 475, 480–81 (Ky. 1994) (delaying the effectiveness of an opinion).

III. The Court should extend its opinion to explain when it becomes final and effective.

The Court can extend an opinion "to cover matters in issue not discussed herein" when "the result is not questioned." RAP 43(B)(1)(c). The Court should extend its opinion to emphasize that the Governor's frenzied actions to take over the Fair Board before the opinion was final were unlawful. Although the Court ruled 4–3 against the Petitioners, the Court should be unanimous in holding that no litigant, not even the Governor, can flout its procedural rules. After all, "the Governor, like everyone, is bound by the law." *Commonwealth ex rel. Beshear v. Commonwealth Off. of the Governor ex rel. Bevin*, 498 S.W.3d 355, 369 (Ky. 2016).

As summarized above, shortly after the Court issued its opinion, the Governor purported to pack the Fair Board with his appointees, his administration purported to void the contract of the longstanding leader of Kentucky Venues, and the newly constituted Fair Board purported to install a new leader. Although the Court's opinion may well allow the Governor to eventually take these steps, he cannot do so until the opinion is final. That is appellate procedure 101. Under the appellate rules, an opinion of this Court is not effective until it is final. RAP 40(F)(1) ("An opinion . . . is effective upon finality . . . ."). An opinion becomes final at the latest of two dates: 21 days after issuance, if no petition for rehearing, modification, or extension petition is filed, or upon the denial of such a timely filed petition. RAP 40(G)(1). So the earliest that the Court's opinion could be effective was 21 days after rendition: July 16. But because the Petitioners filed this petition, the opinion remains nonfinal. See *id.* It follows that the Jefferson Circuit Court's stay of its permanent injunction remains in place.

If the Governor wanted the Court's opinion to become final and effective earlier, he had an option: He could have moved the Court to make its opinion immediately effective. This Court's predecessor granted such a motion upon a showing that the default finality provisions would have rendered the Court's opinion ineffectual. *Commonwealth ex rel. Att'y Gen. v. Furste*, 157 S.W.2d 59, 62–63 (Ky. 1941). The Governor cannot

demonstrate that the Court's opinion requires immediate effect. The Fair Board has operated, and operated well, under HB 518 for over five years. There is no harm in waiting a short time for the appellate process to wrap up.

The Governor might respond that he wanted to immediately follow the Constitution, as interpreted 4–3 by this Court. But that approach just creates uncertainty on this Court's docket. For example, last year, the Court granted a petition for rehearing and ultimately reversed a 4–3 ruling on a constitutional issue by a 4–3 vote. *Coleman v. Jefferson Cnty. Bd. of Educ.*, 733 S.W.3d 302 (Ky. 2025). Think about what would have happened in that case if the party who initially prevailed before rehearing (the Attorney General, coincidentally) had tried to act immediately upon the issuance of the Court's first opinion. The chaotic consequences of pre-finality actions like these demonstrate that the appellate rules ensure an orderly process for the parties to sort out remaining issues upon receiving an opinion. As this Court often reminds litigants, Kentucky's procedural rules are "lights and buoys to mark the channels of safe passage and assure an expeditious voyage to the right destination." *Gasaway v. Commonwealth*, 671 S.W.3d 298, 314 (Ky. 2023) (citation omitted).

The Governor cannot suggest that his rushed actions have not caused any harm. For one thing, the Governor's actions came mere weeks before the State Fair. Surely the Fair Board is better served not to have a leadership shake-up just before that marquee event. Plus, everything that the unlawfully constituted Fair Board does before finality is (rightly) subject to legal challenge. More concerning still, the Governor is apparently taking the position that the Fair Board has been "operating for five years in an unconstitutional manner, and every budget, contract and decision from that time will have to be evaluated." Former Kentucky Venues CEO Responds to Removal by Beshear, Says Job "is not partisan politics", WDRB (July 7, 2026) (quoting the Governor's spokesperson). That is to say, the Governor seems to think this Court's opinion entitles him to reopen every Fair Board decision taken over five years under the circuit court's stay.

Beyond even that, the Governor's actions deprived the Petitioners of their ability to consult with the Fair Board about this petition. Until the Court's opinion, the Fair Board collaborated with the Attorney General and the Agriculture Commissioner in defending HB 518. However, now that the Governor has overtaken the Fair Board, it has unsurprisingly switched sides in this litigation. This petition is weaker because the Petitioners haven't been able to discuss it with the Fair Board, especially the part about

procurement. Put more simply, the Governor's hasty takeover of the Fair Board has allowed him to control both sides of this dispute before it is final. That is antithetical to our adversarial system of justice.

CONCLUSION

The Court should rehear, modify, and extend its opinion.

Respectfully submitted,

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WORD-COUNT CERTIFICATE

This petition complies with the word limit of RAP 43(B)(5) because, excluding the parts exempted, it contains 3,486 words.

/s/ Matthew F. Kuhn